

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

SENATE JOINT
RESOLUTION 55

By: Grellner

AS INTRODUCED

A Joint Resolution directing the Secretary of State to refer to the people for their approval or rejection a proposed amendment to repeal Sections 1, 2, 3, and 4 of Article XXV-A of the Oklahoma Constitution, which relate to Medicaid expansion; ordering a legislative referendum; defining terms; requiring state to provide certain medical assistance; prohibiting certain burdens and restrictions; requiring Oklahoma Health Care Authority to maximize certain federal funding; providing ballot title; providing for codification; and directing filing.

BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE
2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

SECTION 1. The Secretary of State shall refer to the people for their approval or rejection, as and in the manner provided by law, a proposed amendment to repeal Sections 1, 2, 3, and 4 of Article XXV-A of the Oklahoma Constitution.

SECTION 2. Pursuant to Section 3 of Article V of the Oklahoma Constitution, there is hereby ordered the following legislative referendum which shall be filed with the Secretary of State and addressed to the Governor of the state, who shall submit the same to

1 the people for their approval or rejection at the next General
2 Election.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1011.26 of Title 56, unless
5 there is created a duplication in numbering, reads as follows:

6 A. As used in this section:

7 1. "Low-income adults" refers to those individuals over
8 eighteen (18) years of age and under sixty-five (65) years of age
9 whose income does not exceed one hundred thirty-three percent (133%)
10 of the federal poverty level, as described by and using the income
11 methodology provided in the federal Medicaid statute at 42 U.S.C.,
12 Section 1396a(a)(10)(A)(i)(VIII), and who meet applicable
13 nonfinancial eligibility conditions for Medicaid under 42 C.F.R.,
14 Part 435, Subpart E;

15 2. "Medical assistance" means payment of part or all of the
16 cost of the care and services, or the care and services themselves,
17 or both, as provided in the federal Medicaid statute, 42 U.S.C.,
18 Section 1396 et seq.; and

19 3. "Oklahoma Health Care Authority" refers to the single state
20 agency responsible for administering the state Medicaid program
21 pursuant to 42 U.S.C., Section 1396a(a)(5).

22 B. In addition to those otherwise eligible for medical
23 assistance under the state Medicaid program, the state shall provide
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1 medical assistance under the state Medicaid program to low-income
2 adults.

3 C. No greater or additional burdens or restrictions on
4 eligibility or enrollment shall be imposed on persons eligible for
5 medical assistance pursuant to this section than on any other
6 population eligible for medical assistance under the state Medicaid
7 program.

8 D. The Oklahoma Health Care Authority shall take all actions
9 necessary to maximize federal financial participation in funding
10 medical assistance pursuant to this section.

11 SECTION 4. The Ballot Title for the proposed Constitutional
12 amendment as set forth in SECTION 1 of this resolution and the
13 legislative referendum as ordered in SECTION 2 and as set forth in
14 SECTION 3 of this resolution shall be in the following form:

15 BALLOT TITLE

16 Legislative Referendum No. _____ State Question No. _____

17 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

18 This measure repeals Sections 1, 2, 3, and 4 of Article 25-A of
19 the Oklahoma Constitution and enacts substantially the same
20 language related to Medicaid expansion from the repealed
21 constitutional provisions into the Oklahoma Statutes. The
22 statutes could be amended, repealed, or otherwise modified by
23 the Legislature pursuant to the same procedures that allow
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enactment of laws during any regular or extraordinary session of
the Legislature.

SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES

AGAINST THE PROPOSAL — NO

SECTION 5. The President Pro Tempore of the Senate shall,
immediately after the passage of this resolution, prepare and file
one copy thereof, including the Ballot Title set forth in SECTION 4
hereof, with the Secretary of State and one copy with the Attorney
General.

60-2-3990

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